

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YENNIE SOLHEIM FULLER,

Petitioner

VS.

XAVIER R. FULLER,

Respondent

) Case Number: FDI-19-791885

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: APPOINT CLERK OF COURT AS ELISOR TO SIGN RE-ENROLLMENT
CONTRACTS

TENTATIVE RULING

The parties are ordered to appear at 11am on 5/19/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yennie Solheim (Mother) and Respondent Xavier Fuller (Father) were married in 2013 and separated in 2019. They have two minor children together, Chloe (DOB 7/8/2016, age 9) and Heidi (DOB 5/20/2019, almost 7). A Judgment of Dissolution was filed 7/8/2022. The Judgment included the parties' agreement to share joint legal and joint physical custody of the children, with Father to have the children overnight every Wednesday to Thursday and Sunday to Monday, certain holidays, and daily FaceTime calls. Mother is represented by attorney Ashley Rodet. Father is represented by attorney Mary Needham.

- 2) On 11/10/2024, Mother filed an ex parte request seeking temporary sole legal and physical custody based on Father's paranoid and delusional behavior. She asked that all visits be suspended or supervised pending Father's undergoing a psychological evaluation. The Court maintained the joint legal custody order but granted temporary sole physical custody to Mother with a step-up from professionally supervised visits to unsupervised visits for Father. On 6/11/2025, the Court ordered the parties to undergo a custody evaluation.
- 3) At a 9/16/2025 review hearing, the Court maintained joint legal custody and sole physical custody to Mother and issued orders relating to the custody evaluation as well as a detailed parenting time schedule for Father.
- 4) On 4/2/2026, the Court held a hearing on Mother's ex parte request regarding school choice. The Court ordered the parties to commit to re-enroll in San Francisco Friends School but in the meantime to look in good faith for alternative schools viable to enroll the children. The Court ordered the parties to sign and submit the school contract for San Francisco Friends School no later than 5/4/2026 to avoid the risk of missing a deadline and ordered Mother to request an extension for payment of the \$15,000 deposit for the school tuition. The Court further ordered the parties to file update declarations no later than 5/1/2026 on the issue of school choice, for the Court to make any additional orders as necessary.
- 5) On 4/17/2026, Mother filed an ex parte request seeking temporary sole legal and sole physical custody of both children based on statements the children made indicating Father had sexually abused them. Mother asked that Father's visits—i.e., Wednesdays from 1:30pm to 4:30pm and Saturdays from 10:30am to 5:30pm and Facetime calls on Tuesdays and Thursdays at 6:30pm—be suspended pending an investigation by Child Protective Services and the San Francisco Police Department. This Court granted the ex parte request pending a hearing on shortened time on 5/12/2026.
- 6) On 4/30/2026, Mother filed an Update Declaration Re: School Enrollment. Mother states that San Francisco Friends School has informed her that a tuition deposit is not required for returning families until beginning of next year. Mother also stated that she had not received any communications from Father or counsel regarding any proposed alternative school enrollment

options and so is requesting that the Court maintain is prior order requiring Father to sign the re-enrollment contract for San Francisco Friends School no later than 5/4/2026.

- 7) On 5/6/2026, Father filed a Declaration Re School Choice. Father asks the Court to delay a school decision for the children until the custody evaluation has been completed. Father states the SFUSD open enrollment window has not closed, and viable public school placements remain available for both children through September 2026. Father states the following placements are open “as of April 30, 2026” (when his declaration was originally due): McKinley Elementary School (Chloe’s former school from Kindergarten through 2nd grade), John Muir Elementary School (school selected prior to switching Chloe to McKinley for Kindergarten), and Woodside Elementary School (in San Mateo County where Father resides). Father states that due to Mother’s actions, San Francisco Friends School does not treat Father as an equal parent and rather treats him as a security concern. Father states that this has had impacts on their children’s participation in peer activities during his custodial time and places the children in the middle of parental contact contrary to the children’s best interest. Father states that Mother has made false allegations of sexual abuse which has halted the custody evaluation, prevented timely school decision-making, and destabilized the children’s lives. Father does not agree to voluntarily pay private school tuition.
- 8) On 5/8/2026, Mother filed an ex parte Request for Order asking the Court to appoint an elisor to sign the San Francisco Friends School re-enrollment contracts. Mother states that Father has not signed the re-enrollment contracts, despite the Court-ordered deadline that he do so by 5/4/2026. Mother also states that Father’s attorney had not responded to emails from her attorney about this matter. Mother asks the Court to appoint the Clerk of the Court as elisor to sign the re-enrollment contracts, copies of which she attaches to her ex parte Request for Order as Exhibits C and D.
- 9) On 5/8/2026, Father filed a Responsive Declaration. Father states that there is no urgency here and he should not be required to sign the re-enrollment contracts for San Francisco Friends School when that school has not been selected by the Court. Father also states that the enrollment process for the children for 2026 – 2027 for San Francisco Friends School appears to already be complete, and accuses Mother of completing that without his input. Father attached an email as Exhibit A dated 5/1/2026 from Blackbaud Tuition Management which states: “Your 2026-2027

1 Blackbaud Tuition Management enrollment for San Francisco Friends School is complete.”

2 Father states he spoke with a Blackbaud representation during a call on “May 17, 2026” and a
3 representative informed him that an “enrollment record would not be generated unless the school,
4 SFFS, had already accepted the enrollment form submitted by Yennie” and “both parties’
5 signatures would generally be expected for enrollment authorization where there is joint legal
6 custody.” Father states, “The representative alluded to the fact that something on the school’s
7 administrative side appears to have been modified or overridden to permit the enrollment to
8 proceed with only one parent (Yennie) as I did not re-enroll the children.”

9 10) On 5/8/2026, Judge Luna denied Mother’s ex parte request pending a hearing set for 5/19/2026.

10 11) On 5/11/2026, Mother filed a request for a Domestic Violence Restraining Order (DVRO) in
11 related Case No. FDV-19-791885 seeking protection from Father for herself and on behalf of
12 their children. The Court issued a temporary restraining order, which includes an order
13 temporarily suspending Father’s parenting time, consistent with the Court’s 4/17/2026 ex parte
14 order. The matter is scheduled to be heard on 5/27/2026 at 8:30am.

15 12) On 5/12/2026, the Court made a finding that it is in the children’s best interest to maintain the
16 current temporary order for sole legal and physical custody to Mother, with no parenting time for
17 Father, pending written agreement by the parties or further Court order to be made at the
18 continued hearing (scheduled for 7/21/2026) or at the DVRO hearing (scheduled for 5/27/2026).

19 **B. Findings and Order**

20 1) **The parties are ordered to appear at 11am on 5/19/2026 in Department 404 in person or via**
21 **Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and**
22 **Instructions for Remote Appearance in San Francisco Family Court set forth above**
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